

The Gazette **of Pakistan**

**EXTRAORDINARY
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PART I

Acts, Ordinances, President's Orders and Regulations

NATIONAL ASSEMBLY SECRETARIAT

Islamabad, the 19th August, 2016

No. F. 22(3)/2015-Legis.—The following Acts of *Majlis-e-Shoora* (Parliament) received the assent of the President on the 18th August, 2016 are hereby published for general information:—

ACT NO. XL OF 2016

An Act to make provisions for prevention of electronic crimes

WHEREAS it is expedient to prevent unauthorized acts with respect to information systems and provide for related offences as well as mechanisms for their investigation, prosecution, trial and international cooperation with respect thereof and for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

(745)

Price: Rs. 20.50

[3545(2016)/Ex. Gaz.]

CHAPTER I

PRELIMINARY

1. Short title, extent, application and commencement.—(1) This Act may be called the Prevention of Electronic Crimes Act, 2016.

(2) It extends to the whole of Pakistan.

(3) It shall apply to every citizen of Pakistan wherever he may be and also to every other person for the time being in Pakistan.

(4) It shall also apply to any act committed outside Pakistan by any person if the act constitutes an offence under this Act and affects a person, property, information system or data located in Pakistan.

(5) It shall come into force at once.

2. Definitions.—(1) In this Act, unless there is anything repugnant in the subject or context,—

(i) “act” includes—

(a) a series of acts or omissions contrary to the provisions of this Act; or

(b) causing an act to be done by a person either directly or through an automated information system or automated mechanism or self-executing, adaptive or autonomous device and whether having temporary or permanent impact;

(ii) “access to data” means gaining control or ability to use, copy, modify or delete any data held in or generated by any device or information system;

(iii) “access to information system” means gaining control or ability to use any part or whole of an information system whether or not through infringing any security measure;

(iv) “Authority” means the Pakistan Telecommunication Authority established under the Pakistan Telecommunication (Re-organization) Act, 1996 (XVII of 1996);

(v) “authorization” means authorization by law or by the person empowered to make such authorization under the law: